



**HIGH COURT OF JUDICATURE FOR RAJASTHAN
BENCH AT JAIPUR**



S.B. Criminal Miscellaneous 3rd Bail Application No. 10179/2026
CNR: RJHC020595432026 | URN: CRLMB / 18888U / 2026

Hemraj S/o Shri Heera Lal, Aged About 38 Years, R/o Gopalpura,
Police Station Mangrol, District Baran (Rajasthan) (At Present
Confined In District Jail, Baran).

-----Petitioner

Versus

State Of Rajasthan, Through Pp

-----Respondent

For Petitioner(s) : Mr. Girish Khandelwal, Adv.
For Respondent(s) : Mr. NS Dhakar, PP

HON'BLE MR. JUSTICE ANIL KUMAR UPMAN

Order

07/08/2026

1. This third application for bail under Section 483 of BNSS has been filed on behalf of the petitioner herein, who has been arrested in connection with FIR No.155/2024 registered at Police Station Sadar Baran, District Baran for offences punishable under Sections 302 and 394 of IPC. After completion of investigation, Police filed charge-sheet for offences punishable under Sections 302, 396, 201, 120-B of IPC in the concerned Court.
2. The first bail application of the petitioner was dismissed as withdrawn vide order dated 16.01.2025 and thereafter the second bail application was dismissed as withdrawn with liberty to renew the prayer for bail after recording the testimony of Investigating Officer. Now, this third bail application has been filed.
3. Learned counsel appearing for the petitioner submits that petitioner has been falsely implicated. He argues the prosecution's



case is based on circumstantial evidence because there is no eyewitness to the offence. He contends that there is no material on the record linking the petitioner to the crime. The investigating Officer has candidly admitted in his cross examination before the trial Court that there is no evidence that the deceased was last seen with the petitioner before death Counsel submits that there was no evidence with the Investigating Officer to justify taking the petitioner into custody. The petitioner was arrested solely because, according to one witness, the petitioner and other co-accused were seen standing and talking at a tea-and-samosa shop about the installment to be given to the deceased and the shopkeeper has not supported the prosecution's case and has been declared hostile. Counsel submits that the mere recovery of Rs.500/- and the deceased's alleged bag and clothes and the petitioner's own motorcycle, are not sufficient to connect the petitioner with the offence. As to the bag and clothes, the prosecution's case itself is that the co-accused had given those items to the petitioner for concealment. The petitioner has been in custody since 24.05.2024 and a long time is likely to be required for disposal of the case, therefore, considering the aforesaid facts, this third bail application may be allowed.

4. Per contra, learned State counsel vehemently opposes the submissions advanced on behalf of the petitioner. He submits that looking to the gravity of offence as well as evidence that has come on record so far, especially that the petitioner has caused fatal injury to the deceased, therefore, this third bail application may be dismissed.

5. I have considered the contentions.





6. Having regard to the totality of the facts and circumstances of the case and considering the arguments advanced by counsel for the parties, especially considering the testimony of the Investigating Officer, who has candidly admitted in his cross examination before the trial Court that there is no evidence that the deceased was last seen with the petitioner before death and the fact that trial will take considerable time in its conclusion as well as looking to the period of custody of the petitioner, but without commenting anything on the merits/demerits of the case, I deem it fit and proper to allow this third bail application.

7. Consequently, this third bail application is allowed. It is ordered that the accused-petitioner **Hemraj S/o Shri Heera Lal** shall be released on bail, provided he furnishes a personal bond in the sum of Rs.1,00,000/- (Rupees One Lakh only) together with two sureties in the sum of Rs.50,000/- (Rupees Fifty Thousand only) each to the satisfaction of the learned trial Court with the stipulation that he shall appear before that Court and any Court to which the matter is transferred, on all subsequent dates of hearing and as and when called upon to do so.

8. It is made clear that the accused-petitioner shall not involve in any other offence(s) during currency of the bail and he shall mark his presence in the first week of every month in the concerned police station.

9. Concerned SHO is directed to maintain a register recording the attendance of the petitioner, as directed above. In case the petitioner fails to mark his presence in the concerned police station, as directed above, the concerned SHO is directed to



immediately report the matter to the concerned Court in this regard.

10. If any breach of these conditions is reported or comes to the notice of the Court, the same shall alone be a reason for the trial court to cancel the bail granted to him by this Court.

11. Office is directed to send a copy of this order to the concerned SHO for necessary compliance.

12. The observations made herein above are only for decision of the instant bail application and would not have any impact on the trial of the case in any manner.

(ANIL KUMAR UPMAN),J

271/GAUTAM JAIN